COURT OF APPEAL OF THE STATE OF CALIFORNIA
FIRST APPELLATE DISTRICT, DIVISION TWO

PEOPLE OF THE STATE OF CALIFORNIA,

Plaintiff and Appellant,

v.

Court of Appeal Case No. A162872

CHRISTIAN NOEL PADILLA-MARTEL,

Defendant and Respondent.

San Francisco Superior Court
Case No. CGC-20-586763
The Honorable Ethan P. Schulman

APPELLANT PEOPLE OF THE STATE OF CALIFORNIA'S MOTION FOR JUDICIAL NOTICE; EXHIBITS A—B

DAVID CHIU, State Bar #189542
City Attorney
PETER J. KEITH, State Bar #206482
Chief Attorney, Neighborhood and Resident Safety Division
MEREDITH B. OSBORN, State Bar #250467
Chief Trial Deputy
HOLLY D. COULEHAN, State Bar #244682
Deputy City Attorney
1390 Market Street, 7th Floor
San Francisco, California 94102-5408
Telephone: (415) 554-3800
Facsimile: (415) 437-4644

Attorneys for Plaintiff and Appellant PEOPLE OF THE STATE OF CALIFORNIA

MOTION FOR JUDICIAL NOTICE

Pursuant to Rule 8.252 of the California Rules of Court, Appellant People of the State of California ("People") hereby move the Court to take judicial notice of certain official acts, specifically the December 2021 declaration of a state of emergency in the Tenderloin District, and factual matters not subject to reasonable dispute, namely that the nuisance in the Tenderloin continues to persist unabated:

1. The Proclamation by the Mayor Declaring the Existence of a Local Emergency: Drug Overdoses in the Tenderloin by London N. Breed, Mayor of the City and County of San Francisco, dated December 17, 2021, a true and correct copy of which is attached as Exhibit A.

2. Motion Concurring in Proclamation of Local Emergency - Drug Overdoses in the Tenderloin, dated December 23, 2021, a true and correct copy of which is attached as Exhibit B.

3. That the nuisance in the Tenderloin found by the trial court is still ongoing.

DISCUSSION

The recent emergency declarations and the continuing crisis in the Tenderloin are relevant to this appeal, in that they provide further proof of the urgent need for this Court to correct the error of the Superior Court, and to reverse and remand with instructions to the Superior Court to issue the requested preliminary injunctions against Respondents, as more fully described in the People's merits briefs.

The official declaration of a state of emergency and concurrence by a county board of supervisors is a proper subject of judicial notice. (Evid. Code § 452(b), (c); *e.g.*, *Bullock v. Superior Court of Contra Costa County* (2020) 51 Cal.App.5th

134, 141 fns. 4 & 5 [taking judicial notice of declaration of COVID-19 emergency by county board of supervisors]; *see also*, *e.g.*, *Inns by the Sea v. California Mutual Insurance Company* (2021) 71 Cal.App.5th 688, 286 Cal.Rptr.3d 576, 580 fn. 2 [taking judicial notice of county orders during COVID-19 emergency, and noting subdivision (c) provides for judicial notice of actions of counties].)

The continued existence of the nuisance conditions and drug crisis in the Tenderloin as found by the trial court is a proper subject of judicial notice per Evidence Code section 452, subdivision (g), which provides for judicial notice of "facts and propositions that are of such common knowledge within the territorial jurisdiction of the court that they cannot reasonably be the subject of dispute." (Evid. Code § 452(g); *e.g.*, *Porter v. Fiske* (1946) 74 Cal.App.2d 332, 338 [upholding injunction against violator of pricing controls, and taking judicial notice of "emergency occasioned by the scarcity of housing accommodations in areas where war supplies were being produced" during World War II].) The existing nuisance conditions in the Tenderloin are well known within the territorial jurisdiction of the Superior Court and this Court. Respondents and Amici have not disputed them, and no one could reasonably dispute that they continue to exist.

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These matters were not presented to the trial court because they occurred after the trial court issued its order; furthermore, these matters simply confirm that continued existence of the nuisance conditions in the Tenderloin, as already found by the trial court when it issued the order appealed from.

Dated: January 3, 2022

DAVID CHIU
City Attorney
PETER J. KEITH
Chief Attorney, Neighborhood and Resident Safety Division

s/PETER J. KEITH
PETER J. KEITH
Attorneys for Appellant PEOPLE OF THE STATE OF CALIFORNIA